

or debentures, or in the purchase of the debenture stock, of any railway company in Great Britain or Ireland incorporated by special Act of Parliament, and having for the ten years next before the date of investment paid a dividend on its ordinary stock or shares, with power to vary the investment into or for any other such securities.

(2). In discharge, purchase, or redemption of incumbrances affecting the inheritance of the settled land (*c*), or [*563] other the whole estate *the subject of the settlement (*a*), or of land-tax, rent-charge in lieu of tithe, Crown-rent, chief rent, or quit-rent, charged on or payable out of the settled land.

(3). In payment for any improvement authorised by the Act (*b*).

(4). In payment for equality of exchange or partition of settled land.

(5). In purchase of the seignory of any part of the settled land, being freehold land, or in purchase of the fee simple of any part of the settled land, being copyhold or customary land.

(6). In purchase of the reversion or freehold in fee of any part of the settled land, being leasehold land held for years, or life, or years determinable on life.

(7). In purchase of land in fee simple, or of copyhold or customary land, or of leasehold land held for sixty years or more unexpired at the time of purchase, subject or not to any exception or reservation of or in respect of mines or minerals therein, or of or in respect of rights or powers rela-

(*c*) The words "incumbrances affecting the inheritance of the settled land" must be taken in their ordinary sense of mortgages, portions, &c., and not as meaning incumbrances such as charges for land drainage and improvements created under the Land Improvement Act, 1864, and other similar Acts, which, although in one sense affecting the inheritance, are in numerous cases charges rather affecting the tenant for life than the remainderman, *per* Pearson, J.; *Re Knatchbull's Settled Estate*, 27 Ch. D. 349; affirmed 29 Ch. Div. 588.

Therefore, where before the passing of the Settled Land Act charges of this nature have been created, the tenant for life is not entitled to have them discharged out of the capital of the settled land, *Ib*.

(*a*) It is not necessary that the incumbrance should affect the whole of the settled estates, it is sufficient if it affect any land the subject of the settlement; *Re Chaytor's Settled Estate Act*, 25 Ch. D. 651.

(*b*) For the authorised improvements, see *ante*, p. 560, note (*b*).